

TENTATIVE RULINGS FOR August 12, 2026.
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

MARK ESTAFANOUS

v.

**SUBARU OF AMERICA, INC.; DCH RIVERSIDE-S, INC. dba DCH SUBARU OF
RIVERSIDE
CIVSB2438100**

Motion: **Motion to Compel Plaintiff's Deposition and Sanctions**
Movant: Defendant Subaru of America, Inc.
Respondent: Plaintiff Mark Estafanous

PROCEDURAL/FACTUAL BACKGROUND

On December 26, 2024, Plaintiff Mark Estafanous filed a lemon law action against Defendants Subaru of America, Inc., and DCH Riverside-S, Inc., dba DCH Subaru of Riverside. Plaintiff alleges the following causes of action: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of the Song-Beverly Act section 1793.2; and (3) negligent repair.

Now before the Court is Defendant Subaru's motion to compel Plaintiff's deposition and for sanctions of \$1,888.50. Defendant asserts that on October 20, 2025, the parties' counsel exchanged a series of emails under which Plaintiff agreed he would appear for his deposition on December 12, 2025, at 10:00 a.m. On October 21, 2025, Defendant served a Deposition Notice, noticing Plaintiff's deposition for December 12, 2025. On December 4, 2025, Plaintiff's counsel served objections, stating that Plaintiff is unable to proceed with the deposition due to a conflict with his employer. He also stated that subject to the objections Plaintiff remains available to proceed with his deposition as noticed. Plaintiff's counsel offered December 23, 2025, as an alternative date, but the parties ultimately agreed to January 19, 2026 as the deposition date. (Kreshek Decl. ¶¶ 4-7 and Exhs. 1-3.)

On January 6, 2026, Plaintiff's counsel wrote that Plaintiff's counsel would be unavailable for a January 19, 2026, deposition due to the Martin Luther King, Jr. holiday and proposed alternative dates. Ultimately, February 2, 2026, was agreed to. On January 14, 2026, Defendant

served an Amended Deposition notice for Plaintiff's deposition to proceed on February 2, 2025. On January 27, 2026, Plaintiff's counsel served an objection that stated that subject to the objections, Plaintiff will proceed with his deposition as noticed. However, on February 2, 2026, less than two hours before it was scheduled, Plaintiff's counsel wrote that due to unforeseen circumstances, Plaintiff will be unable to proceed with the deposition. Plaintiff's counsel then offered February 23, and March 9, 2026, as possible dates. But defense counsel was not available on those dates. (Kreshek Decl. ¶¶ 8-11 and Exhs. 4-6.)

On March 10, 2026, defense counsel wrote Plaintiff's counsel demanding dates by March 13, 2026, and advising that this would be defense counsel's last attempt to meet and confer about Plaintiff's deposition. (Kreshek Decl. ¶ 12 and Exh. 7.) Plaintiff's counsel did not respond. (*Ibid.*)

In opposition, Plaintiff argues that the parties have resolved the dispute as to the deposition date because Plaintiff has agreed to sit for a deposition on September 1, 2026. Plaintiff also argues that Defendant fails to demonstrate good cause justifying the discovery sought in the deposition notices, but Plaintiff also states that he does not dispute Defendant's right to take his deposition and is not refusing to sit for it. Plaintiff argues that the cancellations were not in bad faith but the result of reasonable and legitimate causes, including Plaintiff's employer not approving requested time off, the deposition being noticed on a court holiday, and Plaintiff suffering a personal emergency. Plaintiff contends that Defendant did not respond to Plaintiff's counsel's February 2, 2026, email offering alternative dates. Instead, the next email was defense counsel's email on March 10, 2026, "demanding Plaintiff provide dates." (Cohen Decl. ¶¶ 3-6.) Plaintiff argues that Defendant's request for sanctions should be denied.

On reply, Subaru argues that the Court should order Plaintiff's deposition to proceed given Plaintiff's opposition only states that he "intends" to appear for his deposition. Defendant also argues there is no good cause requirement for a motion to compel under Code of Civil Procedure section 2025.450. It contends a good cause requirement only exists as to a motion to compel production of documents, which it contends it is not seeking. It asserts that it is only seeking to compel Plaintiff's appearance.

As for Plaintiff's assertion that Defendant did not respond to Plaintiff's February 2, 2026, email, defense counsel states that he did respond by email two days later, citing Kreshek Reply Declaration paragraphs 4 and 5 and Exhibit 1.

Finally, Defendant Subaru argues that sanctions are warranted.

DISCUSSION

Given the parties have agreed to September 1, 2026, as the deposition date, the Court grants the motion and orders Plaintiff's deposition to proceed on that date. The only remaining issue is sanctions.

Here, the motion is noticed as being brought under Code of Civil Procedure section 2025.450, subdivision (a). Under section 2025.450, subdivision (b)(2), the motion shall be accompanied by a meet and confer declaration under section 2016.040.

The Court denies the request for sanctions because Defendant failed to engage in a good faith meet and confer in person, by telephone, or by videoconference before bringing the motion. (Code Civ. Proc., § 2016.040, subd. (a).) Instead, Defendant sent an email on March 10, 2026, demanding a date be provided no later than March 13, 2026. (Kreshek Decl. ¶ 12 and Exh. 7.) The motion was then filed on April 2, 2026, without any attempt to meet and confer in person, by telephone, or by videoconference as required by section 2016.040.

RULING

The Court rules as follows:

1. Grants Defendant Subura's motion, and orders Plaintiff's deposition to proceed on September 1, 2026.
2. Denies Defendant Subaru's request for sanctions because it failed to meet and confer in person, by telephone, or by videoconference before filing the motion. (Code Civ. Proc., § 2016.040.) Therefore, sanctions are not justified under the circumstances. Grants FCA's request for judicial notice pursuant to Evidence Code section 452(d).
3. Orders, Defendant Subura, as the prevailing party, to give formal notice of the Court's rulings in this matter.

Dated: August 12, 2026

Judge Nicole Quintana Winter